

VCU324378 Scalia, Frank vs. Patel, Anilkumar K.

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-09-24

Motion: Defendant Patel's Motion to Compel Initial Responses to Requests for Production of Documents, Set Two, as to Plaintiff Scalia; Sanctions

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Re: Scalia, Frank vs. Patel, Anilkumar K.

Case No.: VCU324378

Date: September 24, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Defendant Patel's Motion to Compel Initial Responses to Requests for Production of Documents, Set Two, as to Plaintiff Scalia; Sanctions

Tentative Ruling: To grant the motion and order responses no later than thirty (30) days from notice of this ruling; to issue sanctions against Plaintiff Scalia, and counsel of record, in the amount of \$560 due no later than thirty (30) days from notice of this ruling; to order Defendant to provide notice

Facts

On June 26, 2026, Defendant Patel electronically served Request for Production of Documents, Set Two, on Plaintiff Scalia. Responses were due no later than July 28, 2026.

On July 29, 2026, Defendant filed this motion to compel initial responses.

Further, Defendant seeks sanctions against Plaintiff and counsel of record, in the amount of \$2,990 consisting of 7 hours at \$250 per hour plus 2 hours at \$350 per hour plus \$60 filing fee for nine (9) separate motions. Defendant indicates this is time incurred as to 9 motions filed simultaneously.

No opposition appears filed.

Authority and Analysis

Based on Plaintiff's failure to respond to the first set requests for production of documents, the Court orders under, Code of Civil Procedure section 2031.300(a) that Plaintiff provide full and complete verified responses without objection to Defendant's second set of requests for production of documents, within thirty (30) days after service of the notice of this ruling for this motion. Defendant shall give notice.

Sanctions

The Court will not award sanctions for this motion where Defendant's declaration fails to itemize the time incurred on this motion specifically and, instead, bills for nine (9) separate motions.

The Court will award the \$60 filing fee and 2 hours for this motion at the \$250 per hour rate. The motion is deemed non-complex.

Therefore, the Court sanctions Plaintiff Scalia, and counsel of record, in the amount of \$560 due no later than thirty (30) days from notice of this ruling.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.